Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Tuesday, February 28, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of January 24, 2022;
- Special Meeting of February 7, 2022; and
- Closed Session Meeting of February 7, 2022

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

5. Delegations and Presentations

5.1 Presentation: Ajax Anti-Black Racism (AABR) Task Force Update Proclamation: Black History Month Proclamation

Mariska Thomas, Chair, and Dane Lawrence, Vice-Chair, AABR Task Force, provided an update from the AABR Task Force. M. Thomas and D. Lawrence discussed the United Nations International Decade for People of African Descent, identifying the 3 main pillars as recognition, justice and development. M. Thomas and D. Lawrence discussed paid internships, the Black owned business directory, the speaker series initiative, and recommendations for an Ajax Community Resource Centre. M. Thomas thanked Council for their continued support.

Council Members asked questions regarding public response to the Black owned business directory, community engagement methods, projected timelines for paid internships, framework for internships, and the number of area municipalities that support the United Nations International Decade for People of African Descent. D. Lawrence, Natasha

Sharma, Diversity and Inclusion Coordinator, and M. Thomas responded to Council Members.

Mayor Collier presented the proclamation certificate and proclaimed February as Black History Month in the Town of Ajax. On behalf of Council, Mayor Collier thanked M. Thomas and D. Lawrence for their presentation.

5.2 **Presentation: Durham Black Network**
Black History Month

Jim VanDusen, Vice Chair, and Billie-Jane Bolton Rojo, Member, Durham Black Network, provided an overview of the Durham Black Network organization and delivered a presentation on Black History Month. J. VanDusen and B. Bolton Rojo discussed the vision of Durham Black Network, programming, equity and equality marketing campaign, and opportunities for change and contribution to promoting equity and equality.

Council Members asked questions regarding the process for submissions for the equity and equality challenge and particulars of Black Open Mic. J. VanDusen and B. Bolton Rojo, responded to Council Members.

On behalf of Council, Mayor Collier thanked J. VanDusen and B. Bolton Rojo for their presentation.

5.3 **Presentation: How can we take action against Islamophobia together?**

Rizwan Mohammad, Advocacy Advisor, National Council of Canadian Muslims (NCCM), provided an overview of NCCM and spoke in favour of Council passing the motion outlined under Item 9.1. R. Mohammad acknowledged the Town's commitment to community involvement and applauded the Town's efforts to promote inclusion and equality. R. Mohammad discussed opportunities to build on commitment to action, noting that hate crimes and hate-motivated crimes continue to rise.

Council Members asked questions regarding municipal response to action against Islamophobia. R. Mohammad responded to the question from Council Members.

On behalf of Council, Mayor Collier thanked R. Mohammad for his presentation.

With the consent of Members present, item 9.1 was advanced in the order business.

9. Business Arising from Notice of Motion

9.1 **Support of the NCCM Anti-Islamophobia Municipal Recommendations**

Regional Councillor Lee and Councillor Khan introduced the motion and reviewed its contents. Council Members noted their position against anti-Islamophobia and hate of any kind.

Moved by: S. Lee
Seconded by: A. Khan

WHEREAS in 2019 the Province of Quebec enacted Bill 21 (an act respecting the laicity of the state) which prohibits public servants from wearing religious symbols in the exercise of their public service functions, including turbans, hijabs, yarmulke, the cross, and many others;

AND WHEREAS the Town of Ajax has a racialized majority of 56% and strives to create more positive spaces, policies and programming to help celebrate diversity, inclusion and equality regardless of a person's race, ancestry, place of origin, colour, ethnic origin, disability, citizenship, creed, sex, sexual orientation, gender identity, age, marital status, religion, literacy, language and/or socioeconomic status, etc.;

AND WHEREAS Bill 21 is a divisive law that perpetuates exclusion, discrimination, and class division by increasing systematic barriers to employment;

AND WHEREAS the National Council of Canadian Muslims (NCCM) presented the following recommendations for municipalities at the 2021 National Summit on Islamophobia:

1. Pass municipal street harassment bylaws that are proportional and constitutional, such as the approach now being adopted in Edmonton after an NCCM initiative. Bylaws should also address clearly hateful verbal assaults and give authorities the ability to ticket and fine when necessary.
2. Municipalities provide dedicated funding for local community-based anti-Islamophobia initiatives.
3. Mayors should build Anti-Islamophobia Advisory Councils/Circles while ensuring that there is appropriate representation of diverse local Muslim communities.
4. Municipalities dedicate specific funding for anti-Islamophobia public awareness campaigns.
5. Invest in celebrating the history of local Canadian Muslims and initiatives through a concrete program that brings these figures and names to the forefront of local-level recognition. Municipalities should fund events and spaces where their accomplishments are celebrated in a way that clearly shows that Muslims have made real contributions to Canadian society and are far from the violent caricatures that constantly make the news.
6. Redirect funding towards alternative measures to policing in municipal budgets.
7. Develop models for training young Muslim leaders for the future such as the Youth Fellowship program in Toronto;

AND WHEREAS on January 26, 2022, City of Brampton Council endorsed a motion for consideration by the Federation of Canadian Municipalities (FCM) Board that the FCM:

1. condemns hate and racism in all its forms, including Islamophobia;
2. endorses the municipal recommendations to address Islamophobia advanced by the NCCM;
3. recommends that members also endorse the NCCM's recommendations within one calendar year; and
4. calls on the federal government to consult municipalities in the process of establishing an Office of the Special Representative to address Islamophobia;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council endorse the municipal recommendations as prepared by the NCCM for the National Summit on Islamophobia;
2. Ajax Council requests the FCM to enact the anti-Islamophobia recommendations proposed by Brampton Council; and
3. That a copy of this Resolution be sent to the Ontario Big City Mayors, the Honourable Mark Holland, MP for Ajax, the Ajax Provincial Constituency Office, the Regional Municipality of Durham and lower-tier municipalities in Durham Region, the City of Brampton, and the NCCM.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Mayor Collier

Opposed: None

5.4 **Presentation: Canada Post Super Community Mailbox Education**
Referred from February 14, 2022 Operating Budget GGC Meeting

Devon Jarvis, Interim Supervisor of Corporate Communications, provided an overview of three signage options for anti-littering messaging at Canada Post Super Community Mailboxes, including sticker decals installed directly on mailboxes, letters mailed to residents, and metal signs installed in the vicinity of the mailboxes. D. Jarvis advised that Canada Post does not permit sticker decals on Canada Post mailboxes, thereby eliminating this option.

Council Members asked questions regarding opportunities to procure cheaper signs, costs associated with the Canada Post litter communication letter, and opportunities to track effectiveness of an anti-litter communication campaign. D. Jarvis responded to questions from Council Members.

6. Correspondence

Members separated correspondence items 6.3, 6.6 and 6.8 for discussion.

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the balance of the report (Items 6.1, 6.2, 6.4, 6.5, 6.7, 6.9, 6.10, 6.11, 6.12, 6.13, 6.14, 6.15 and 6.16) dated February 28, 2022 containing Items of Correspondence be received for information.

CARRIED

Item 6.3

Council Members discussed the motion, noting their support for small and community-owned businesses.

Moved by: A. Khan
Seconded by: M. Crawford

That Item 6.3 (City of Oshawa – Request for Funding to Assist Businesses Affected by the Pandemic) of the Correspondence Report be endorsed.

CARRIED

Item 6.6

Council Members discussed the motion, expressing concerns related to impacts on stakeholders in the industry, including host communities and casino workers.

Moved by: S. Lee
Seconded by: L. Bower

That Item 6.6 (Township of Scugog – iGaming Model) of the Correspondence Report be endorsed.

CARRIED

Item 6.8

Council Members discussed the correspondence, noting their support for infrastructure funding to widen dead-end roads to ensure the safe operation of school buses.

Moved by: J. Dies
Seconded by: M. Crawford

That Item 6.8 (Durham District School Board and Durham Catholic School Board – Provincial Funding to Municipalities to Widen Dead-End Roads in Durham Region for the Safe Operation of School Buses) of the Correspondence Report be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, February 7, 2022

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the Community Affairs & Planning Committee Report dated February 7, 2022, be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 2022 Operating Budget, February 14, 2022

Main Motion

Moved by: L. Bower
Seconded by: S. Lee

That the General Government Committee 2022 Operating Budget Report dated February 14, 2022, be adopted.

Amendment

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the 2022 Operating Budget be amended by adding $15,000 for the procurement and installation of anti-litter educational signage at Super Community Mailbox locations in Ajax.

MOTION LOST

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Lee, Councillor Tyler Morin

Opposed: Regional Councillor Dies, Councillor Khan, Councillor Bower, Mayor Collier

Main Motion

Moved by: L. Bower
Seconded by: S. Lee

That the General Government Committee 2022 Operating Budget Report dated February 14, 2022, be adopted.

CARRIED

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Mayor Collier

Opposed None

7.2.2 **General Government Committee, February 22, 2022**

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the General Government Committee Report dated February 22, 2022, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Councillor Khan noted that the new 'Heritage Minute' is available on Town of Ajax social media channels.

Moved by: A. Khan
Seconded by: J. Dies

That the Summary of Advisory Committee Activities Report dated February 28, 2022, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1 FIN-2022-02: 2022 Report on Non-Cash Expenses as Required by Ontario Regulation 284/09

Moved by: L. Bower
Seconded by: M. Crawford

That the report on Excluded Non-Cash Expenses, as required by Ontario Regulation 284/09, be received for information.

CARRIED

7.4.2 **LIS-2022-05: Fee Waiver for Residential School Survivors applying for Name Change**

Council Members asked questions regarding requirements for proof of identification. Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to the question from Council Members.

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the report entitled “Fee Waiver for Residential School Survivors applying for Name Change” be received for information.

CARRIED

7.4.3 **APL-2022-01: Appointment to the Ajax Public Library Board**

Moved by: S. Lee
Seconded by: J. Dies

That Eesha Chaudhry of Ajax be appointed to the Ajax Public Library Board for the remainder of the 2018-2022 Council term, or until a successor is appointed effective March 2, 2022.

CARRIED

8. Regional Councillors’ Report

Regional Council Members discussed the Durham 311 project, the use of recycled materials in road reconstruction projects, and Vision Zero red light camera statistics. Members provided an update regarding the inclusion of the Carruthers Creek Headwaters in the Greenbelt.

Mayor Collier noted that Regional Council approved a 2.6% tax increase for 2022 at the previous Regional Council meeting.

Council Members sought clarification regarding the difference between incidents and charges related to Vision Zero red light cameras. Regional Councillor Crawford responded to the question.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors’ Reports of February 28, 2022 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.2 **Snow Event Update**

Councillor Bower and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: S. Lee

WHEREAS on January 17, 2022 the Town of Ajax and Greater Toronto Area experienced the largest snowfall in a decade, resulting in the Town declaring a significant weather event under Ontario Regulation 239/02;

AND WHEREAS the snowfall resulted in significant logistical challenges, and both residents and commuters expressed their feedback and concerns regarding snow clearing

measures;

AND WHEREAS clearing crews gave incredible effort to address the needs of the community;

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations & Environmental Services staff be directed to provide a post-operational update at the March 28, 2022 Council meeting on the Town's overall response to the January 17, 2022 snow event, including:

    a. service levels;
    b. customer service support and communications;
    c. challenges identified; and
    d. lessons learned.

CARRIED

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

9.3 **Support for Bill C-229, the Banning Symbols of Hate Act**

Mayor Collier and Councillor Khan introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS the use of hate symbols is on the rise in Canada, most recently seen at the convoy protests in downtown Ottawa. These overt displays of hate, violence, and intimidation destabilize the inclusive fabric of our community and have no place in our country;

AND WHEREAS the Town of Ajax recognizes the discrimination and systemic hatred, violence, and injustices experienced by underrepresented communities who are targeted because of their identity (e.g. racialized, persons of colour, religious beliefs, sexual orientation, gender, unidentifiable/identifiable disabilities, etc.);

AND WHEREAS Section 319 of the Criminal Code makes it an offence to publicly incite or willfully promote hatred, and private member's Bill C-229 would amend Section 319 to address growing violence and hatred within Canadian communities by banning symbols, emblems, flags and uniforms used to promote or incite hatred and violence, such as the Nazi swastika and the Ku Klux Klan's insignia;

AND WHEREAS Bill C-229 is an opportunity to make all Canadians feel safer in the communities that they live;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council endorses Bill C-229, an Act to Amend the Criminal Code (banning symbols of hate); and

2. A copy of this resolution be forwarded to the Right Honourable Justin Trudeau, Prime Minister of Canada, the Honourable Mark Holland, MP for Ajax, Federal Leaders of the Opposition, Peter Julian, MP for New Westminster – Burnaby and C-229 bill sponsor, the Ajax Provincial Constituency Office, the Regional Municipality of Durham and lower-tier municipalities in Durham Region, and the Ontario Big City Mayors.

CARRIED

Mayor Collier assumed the Chair.

10. By-laws

Moved by: S. Lee
Seconded by: A. Khan

That By-law numbers 07-2022 to 13-2022 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

Regional Councillor Lee noted that he will be bringing forward a motion to the March meeting of Council regarding the status and future of Casino Ajax.

12. New Business - Notices & Announcements

Council Members briefly discussed the emergency order declared by the Town of Ajax and sought an update on the status of upgrades to the Council Chambers. Mayor Collier, Shane Baker, Chief Administrative Officer, and N. Copper responded to questions from Council Members.

Council Members highlighted upcoming events and activities including Sha'ban and Ramadan, a community Ward 1 meeting on March 15, 2022, a free performance by The Young Novelists at St. Francis Centre on March 5, 2022, and a community Ward 3 meeting on March 30, 2022.

13. Confirming By-Law

Moved by: J. Dies
Seconded by: R. Tyler Morin

That By-law number 14-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on February 28, 2022 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: L. Bower
Seconded by: A. Khan

That the February 28, 2022 meeting of the Council of the Town of Ajax be adjourned (8:54 p.m.)

CARRIED

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Mayor

_____
D-Clerk